

Mozambique 2024 Human Rights Report

Executive Summary

Mozambique experienced significant violence following general elections in October. Amid opposition party and independent observer allegations of incumbent party fraud, preliminary results gave the Front for the Liberation of Mozambique, in power since 1975, a sweeping victory in presidential, national assembly, and provincial assembly elections. Inspired by an opposition presidential candidate, the country experienced several weeks of nationwide protests. Police responded to unarmed protesters with force, killed an estimated 248 protesters, and arbitrarily detained 4,200. Journalists reporting on the election and postelection protests were intimidated and harassed, and access to mobile internet and social media applications was restricted. The prolonged period of political tension further eroded public trust in the government.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; disappearances; torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest or detention; serious abuses in a conflict; unlawful use or recruitment of children in armed conflict by ISIS-Mozambique; and serious restrictions on freedom of expression and media freedom, including violence and threats of violence against journalists and unjustified arrests or prosecutions of journalists.

The government took credible steps to investigate, prosecute, and punish some officials who committed human rights abuses; however, impunity among state security force members, law enforcement officers, and civilian authorities remained a significant problem.

Government authorities, media, and nongovernmental organizations reported ISIS-Mozambique continued to commit human rights abuses, including beheadings, kidnappings, destruction of homes, and the use of child soldiers in Cabo Delgado Province. Government prosecutions of these abuses were rare.

Section 1. Life

a. Extrajudicial Killings

There were reports the government or its agents committed arbitrary or unlawful killings during the year. Media reports attributed the killings to members of the security forces, including the Armed Defense Forces of Mozambique (FADM), National Police (PRM), the PRM Rapid Intervention Unit, and government-affiliated local militias in Cabo Delgado Province. The Attorney General's Office was responsible for investigating and prosecuting perpetrators of security force killings deemed unjustifiable; however, according to human rights groups, the government failed to investigate many reports of abuses.

On October 18, political figures Elvino Dias and Paulo Guambe, associated with opposition presidential candidate Venancio Mondlane, were shot and killed. Elvino Dias, a lawyer and longtime advisor to Mondlane, was reportedly working on a legal case to challenge the year's election results on behalf of Mondlane and the opposition party Podemos. Paulo Guambe was a Podemos politician on the party's list for parliament, which was expected to become the main opposition party following the October general elections. The government opened an investigation but had not announced any progress or arrests in the case by year's end.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

c. War Crimes, Crimes against Humanity, and Evidence of Acts that May Constitute Genocide, or Conflict-Related Abuses

Terrorists affiliated with ISIS-Mozambique (ISIS-M) in Cabo Delgado Province reportedly committed acts of terrorism against civilians, including beheadings, rape, sexual slavery, kidnappings, and use of child soldiers. ISIS-M attacks in Cabo Delgado Province increased throughout the year, notably including a major attack in May in Macomia District following a period of

increased displacement. In February attacks and fear of attack displaced at least 71,861 persons.

There were allegations of unlawful killings by government forces fighting ISIS-M in Cabo Delgado Province. Media reports implicated the country's navy in the indiscriminate killing of fishermen off the coasts of the districts of Macomia, Ibo, Mocimboa da Praia, and Palma in Cabo Delgado Province on suspicion of their affiliation with ISIS-M.

ISIS-M reportedly engaged in attacks that targeted and killed dozens of civilians. Media reported ISIS-M beheaded state security force members and civilians, including five women targeted on National Women's Day. In 2023 the Local Forces communal militias were created in Cabo Delgado and incorporated into the structure of FADM to defend communities against attacks by armed groups. According to some reports, militia members extorted and abused residents of the town of Mueda in Mueda District.

Media and human rights nongovernmental organizations (NGOs) reported that during a series of attacks in February and May in the Cabo Delgado Province towns of Chiure and in Macomia, ISIS-M fighters attacked and killed civilians, burned public and private buildings, sacked churches, extorted fees for passage at blocked main thoroughfares, and systematically employed abductions, rape, and forced marriage as terror tactics.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression and information, including for members of the press and media, but the government inconsistently respected these rights. Academics, journalists, opposition party officials, and civil society organizations reported an atmosphere of intimidation and fear that restricted freedom of speech, the press, and other media. Journalists expressed concern regarding government intimidation by security forces, especially police, and stated they practiced self-censorship due to fear of official retaliation.

There were no official restrictions on the ability of individuals to criticize the government or on the discussion of matters of public interest. Nevertheless, journalists and opposition and civil society members complained they feared reprisal when they criticized the government. In February Cabo Delgado Province Governor Valige Tauabo accused local journalists of attempting to undermine FADM interventions in their reports on attacks by terrorists.

There were numerous reported abuses. For example, on February 9, plainclothes police officers detained a political activist based in the northern Nampula Province, days after he recorded and shared on social media a video criticizing the country's president, Filipe Nyusi. The Mozambique Bar Association intervened and the activist, held for three days, was released

without charge. The activist told Human Rights Watch he was held incommunicado and deprived of food and water.

Physical Attacks, Imprisonment, and Pressure

Journalists were subjected to violence, harassment, or intimidation due to their reporting and stated they practiced self-censorship.

On October 25 in Gilé District of Zambézia Province, police reportedly assaulted a community radio station journalist in Monte Gilé for filming the detention of 10 youths protesting election results. The journalist sustained serious injuries. The journalist stated he was dragged into a police vehicle and taken to the Gilé District police command location, where he was severely beaten by police and FADM members.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Media outlets and individual journalists regularly reported on a broad range of topics and criticized the government, Frelimo, and prominent political figures. Most critical articles did not result in retaliation from the government or Frelimo. Civil society organizations and journalists, however, stated the government and Frelimo exerted substantial pressure on media and took retaliatory action when unspecified limits were crossed, particularly related to investigations on sensitive topics, such as Cabo

Delgado Province and corruption. Civil society leaders alleged the government influenced the management of community radio stations through threats and coercion.

b. Worker Rights

Freedom of Association and Collective Bargaining

The constitution and law provided for workers, with limited exceptions, to form and join independent trade unions, conduct legal strikes, and bargain collectively. The law required government approval to establish a union. By law the government could take up to 45 days to register unions, a delay the International Labor Organization deemed excessive. By law the government, political parties, and religious institutions could not interfere with the organization and direction of trade union associations. The law provided for the right of workers to organize and engage in collective bargaining.

The law did not allow strike action until complex conciliation, mediation, and arbitration procedures were exhausted, which typically took two to three weeks. Sectors deemed essential had to provide a “minimum level” of service during a strike. Workers’ ability to conduct union activities in workplaces was strictly limited. The law provided for voluntary arbitration for essential services personnel monitoring the weather and fuel supply, postal service workers, export-processing-zone workers, and those loading

and unloading animals and perishable foodstuffs. The law required strikes be announced at least five days in advance, and the announcement had to include the expected duration of the strike, although the government interpreted this to allow indefinite strikes. Mediation and arbitration bodies, in addition to the unions and workers themselves, could end strikes. The law prohibited antiunion discrimination; however, it did not explicitly provide for reinstatement of workers terminated for union activities. An employee fired with cause did not have a right to severance, but employees terminated without cause had this right.

Workers in defense and security services, tax administration, and the fire brigade, along with prison workers, judges and prosecutors, and the Office of the President's staff, were prohibited from unionizing and striking. Other public-sector workers could form and join unions but were prohibited from striking.

Authorities and employers generally respected freedom of association and the right to collective bargaining, although workers were not able to fully exercise these rights. Collective bargaining contracts covered less than 5 percent of the workforce. The government did not effectively enforce the law. Government efforts included fining companies that violated labor laws and the expulsion of foreign supervisors who allegedly did not follow the law. Inspection and prosecution were not sufficient to enforce compliance. Penalties were not commensurate with those for similar denials of civil

rights. Penalties were sometimes applied against violators.

The largest trade union organization, the Organization of Mozambican Workers (OMW), was perceived as biased in favor of the government and Frelimo. There were no independent unions or labor-focused NGOs.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The government-mandated minimum wage varied by sector and was above the official poverty line. The standard legal workweek was 40 hours but could be extended to 48 hours. Overtime pay was mandated for hours worked more than 48 hours at 50 percent above the base hourly salary. These legal protections also applied to foreign workers holding work permits.

There were some complaints of violations of wage laws in extractive industries and private security. The OMW reported workers and employers in rural parts of the country, where Portuguese was less common, were not aware of their rights and the government did not have resources to disseminate laws in local languages.

On February 21, a labor law took effect that increased maternity leave from 60 days to 90 days, and paternity leave was increased from one day to seven days.

Occupational Safety and Health

The government set occupational safety and health (OSH) standards that were up to date and appropriate for the main industries. Workers had the right to clean and safe workplaces, including good physical, environmental, and moral conditions. Workers had the right to be informed of safety risks and instruction on how to follow the regulations and improve safety, including the right to protective clothing and equipment, first aid, health exams, and compensation for workplace injuries or sickness. Workers had the right to remove themselves from dangerous situations without jeopardy to their employment. OSH officers were responsible for identifying unsafe working conditions, but workers could file complaints regarding unsafe situations.

NGOs reported agricultural and mining workers were among the most vulnerable to poor work conditions.

Wage, Hour, and OSH Enforcement

The government did not effectively enforce minimum wage, overtime, and OSH laws. Penalties were not commensurate with those for similar offenses. Penalties were sometimes applied against violators. The General

Labor Inspectorate, a Ministry of Labor office, was responsible for enforcing the minimum wage rates and OSH standards in the private sector, and the Ministry of Finance did so in the public sector. The labor inspectorate had the authority to make unannounced inspections and initiate sanctions, but the ministries usually investigated violations of minimum wage rates and OSH standards only after workers submitted a complaint. The number of labor inspectors was not sufficient to enforce compliance. Despite the relatively low number of inspectors, some businesses reported frequent visits by labor inspectors citing capricious violations and threats of substantial monetary fines to exact bribes. Labor law applied only to the formal sector, leaving workers in the informal sector unprotected; more than 80 percent of workers were employed in the informal sector.

c. Disappearance and Abduction

Disappearance

There were credible reports of enforced disappearances by or on behalf of government authorities. There were multiple reports of kidnappings for ransom targeted at individuals linked to the business community, with some allegations the perpetrators could have been abetted by law enforcement officers.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements; however, human rights groups reported instances of arbitrary arrest or detention by police during counterinsurgency operations in Cabo Delgado Province. In October and November, in response to largely peaceful protests by opposition party supporters, police arrested an estimated 4,200 demonstrators in Maputo and throughout the country. The Mozambican Bar Association reported it helped secure the release of more than 3,500 detained protesters.

By law judges were required to first issue an arrest warrant unless a suspect was caught in the act of committing a crime. The maximum length of investigative detention was 48 hours without a warrant or four months with a warrant, during which time a detainee had the right to judicial review of the case. A person accused of a crime carrying a potential maximum sentence of more than eight years' imprisonment could be detained up to an additional two months without being formally charged while police completed their investigation. A court could approve a further six-month extension, up to a total of 12 months, in the case of exceptionally complex crimes. The detainee had to be released if no charges were brought within the prescribed period for investigation. The maximum period of detention

prior to trial completion was 18 months, or 24 months on complex crimes charges, and 60 months on terrorism charges. Authorities, however, did not always respect these legal requirements. There were provisions for bail.

Lengthy pretrial detention continued to be a serious problem due to a lack of judges and prosecutors and poor communication among authorities. The Mozambican Bar Association stated overly lengthy pretrial detention constituted a grave human rights abuse and contributed to prison overcrowding. It asserted changes in the penal code that could lead to indefinite pretrial detention for cases involving terrorism and complex crimes were unconstitutional.

During the year the length of pretrial detention was reduced because of an increase in the number of defense lawyers and legal technicians provided through the Institute for Legal Assistance assisting defendants, particularly during the preparatory phase of the trial.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, but there were credible reports government officials employed them.

Authorities mistreated detainees and engaged in reprisals against civilians in response to terrorist attacks in Cabo Delgado Province. International organizations and human rights activists reported torture of prisoners suspected to have links to ISIS-M was prevalent in Metuge Prison in Cabo Delgado Province.

There were multiple reports of police abuse, including in response to protests. According to widely cited reports by a local human rights organization, Plataforma Decide, from October 21 to December 31 police responded to postelection protests in Maputo and other cities with tear gas and in some cases rubber bullets and live fire that cumulatively resulted in 248 deaths, including at least 10 children.

According to human rights activists, impunity was a significant problem within FADM, particularly in Cabo Delgado Province. When abuses were reported, investigations were not conducted, and the Public Prosecutor's Office closed cases on the grounds of lack of evidence.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Soldiers

Human Rights Watch reported ISIS-M on May 10 used boys as young as age 13 to raid and loot the town of Macomia in Cabo Delgado Province.

Child Marriage

By law the minimum age of marriage for men and women was 18. NGOs reported limited public awareness and poor enforcement of the law. Nevertheless, authorities arrested, prosecuted, and courts convicted some individuals for involvement in child marriages.

Child marriage was more common in rural than in urban areas, especially in the northern and central regions of the country. In collaboration with UNICEF, the government established a referral mechanism to train educators and school council members to properly implement the violence against children referral mechanism in schools to prevent and refer cases of child marriage.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. As of November, UNHCR reported 25,000 refugees and asylum seekers in the country awaiting determination of status and final processing. The government had not resolved new cases in more than 10 years. Although the government maintained a reservation to the UN refugee convention relating to freedom of movement for refugees and the ability to work lawfully, those exceptions were not enforced.

Resettlement

The government worked closely with UNHCR to implement a local integration program for refugees, primarily in urban communities, but also at the Maratane Camp in Nampula Province. Refugees could apply for citizenship after 10 years in the country; however, some refugees complained of unexplained and indefinite delays in the processing of

naturalization petitions.

d. Acts of Antisemitism and Antisemitic Incitement

The country had a small Jewish community. There were no known reports of antisemitic incidents.